

## 25NWCV02118 25NWCV02118

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-08-25

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Case Number: 25NWCV02118 Hearing Date: August 25, 2026 Dept: C

VERMA vs VAN

BARNEVELD

CASE NO.: 25NWCV02118

HEARING: 8/25/26 @ 9:30 AM

#12

TENTATIVE RULING

I.

Plaintiff FRANCIS VERMA's Unopposed Motion to Compel Further Responses

to Plaintiff's Request for Production of Documents, Set One is GRANTED.

II.

Plaintiff FRANCIS VERMA's Unopposed Motion to Compel Further Responses

to Plaintiff's Form Interrogatories, Set One is GRANTED. Sanctions awarded to Plaintiff

in the total amount of \$2,000 for both motions to compel further.

Moving Party to give NOTICE.

I.

Plaintiff

FRANCIS VERMA (Plaintiff) moves to compel further responses to all of Plaintiff's request for production of documents, set one, from Defendant JOHN VAN BARNEVELD (Defendant) pursuant to CCP § 2030.220.

II.

Plaintiff

FRANCIS VERMA (Plaintiff) moves to compel further responses to Plaintiff's request for form interrogatories, set one, from Defendant pursuant to CCP § 2031.310.

Although Plaintiff does not specify the interrogatories at issue in the notice to the instant motion, Plaintiff's Separate Statement only includes Form Interrogatories Nos. 7.2, 7.3, 12.1, 12.4, 12.6, and 15.1.

Background

This

is a breach of contract case. The Complaint alleges Plaintiff entered into a written lease (with its amendments referred to as the "Lease Agreement") with Defendant to lease the real property located at 14000 Rosecrans Avenue, Santa Fe Springs, California (Premises) on June 15, 2007. (Complaint, ¶ 7, Exh. A.) Plaintiff alleges "Defendant breached the Lease Agreement by failing and refusing to perform maintenance and repair of the Premises, especially the roof; by

retaliating against Plaintiff in attempts to place the burden of maintenance and repair upon Plaintiff, in attempts to force Plaintiff to move out, in attempts to raise rent nearly 100%, among others.” (Complaint, ¶ 9.)

Based

thereon Plaintiff asserts the following causes of action:

1. BREACH OF CONTRACT;

2. BREACH OF QUIET

ENJOYMENT;

3. BREACH OF GOOD FAITH

AND FAIR DEALING;

4. DECLARATORY RELIEF.

I.

Request for Production, Set One

CCP § 2031.310 allows a party to file a

motion compelling further answers to document requests if it finds that

the response is inadequate, incomplete, or evasive, or an objection in the

response is without merit or too general.

The motion shall be accompanied with a meet and confer declaration. (Code

Civ. Proc., § 2031.310(b) (emphasis added).)

“A statement that the party to whom a demand

for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Code Civ. Proc., § 2031.220.)

“A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (Code Civ. Proc., § 2031.230.)

In dispute is Plaintiff's Request for

Production Nos. 1-28 the entirety of Plaintiff's Request for Production of

Documents, Set One. (Oozoonian Decl., Exh. 3.) Plaintiff argues that Defendant

has failed to provide supplemental responses as promised. Those responses which were provided are not code compliant because Defendant fails to state whether Defendant will comply with the demand for inspection, or whether a diligent search and reasonable inquiry has been made. Defendant merely asserts the same inapplicable and boilerplate objections to evade its obligations under the code.

Defendant fails to oppose the motion.

The Court finds that Defendant has failed to provide code-compliant responses. First, Defendant indicated it would produce documents responsive to RFP Nos. 1-2,4,7-12, 15, 17-19, 23-28 by stating that “Responding Party will produce responsive documents in its possession, control, or custody.”

(See e.g., Sep. Statement, p. 2: 22.) However, Plaintiff declares that

Defendant has failed to make any production. Additionally, if Defendant produces the documents, Defendant must “specifically identify what documents are responsive to the particular document request at hand.” (Code Civ. Proc., §2031.280(a).)

Second, as to RFP Nos. 3, 13, 14, 16, and 20,

Defendant responds that “Responding Party is not in possession, control, or custody responsive to this request.” (See, e.g., Sep. Statement, p. 33: 23.) Defendant fails to state that “a diligent search and a reasonable inquiry has been made in an effort to comply with that demand... [And] the name and address of any natural person or organization known or believed by [Defendant] to have

possession, custody, or control of that item or category of item.” (Code Civ.

Proc., § 2031.230.)

Finally, as to RFP Nos. 5, 21, and 22,

Defendant states that “Responding Party declines to respond to this request.” Defendant

fails to state why Defendant declines to respond. This response is evasive and

does not comply with the Code.

The motion to compel further responses to Request

for Production of Documents (Set One) is GRANTED. Defendant is ordered to provide code-compliant

responses within 20 days.

II.

Form Interrogatories, Set One

Section 2030.300 allows a party to file a

motion compelling further answers to interrogatories if it finds that

the response is inadequate, incomplete, or evasive, or an objection in the

response is without merit or too general. (Code Civil Proc., § 2030.300, subd.

(b).)

(a) Each answer in a response to

interrogatories shall be as complete and straightforward as the information

reasonably available to the responding party permits.

(b) If an interrogatory cannot be answered

completely, it shall be answered to the extent possible.

(c) If the responding party does not have

personal knowledge sufficient to respond fully to an interrogatory, that party

shall so state, but shall make a reasonable and good faith effort to obtain the

information by inquiry to other natural persons or organizations, except where

the information is equally available to the propounding party. (Code Civ.

Proc., § 2030.220.)

Plaintiff propounded the standard Form

Interrogatories promulgated by the Judicial Council for routine and standard

use in proceedings similar to the instant action. For example, Form

Interrogatory No. 7.2 asks:

Has

a written estimate or evaluation been made for any item of property referred to

in your answer to the preceding interrogatory? If so, for each estimate or

evaluation state: (a) the name, ADDRESS, and telephone number of the PERSON who

prepared it and the date prepared; (b) the name, ADDRESS, and telephone number

of each PERSON who has a copy; and (c) the amount of damage stated.

(Sep. Statement, p. 2: 2-7.)

As to Form Interrogatories Nos. 7.2, 7.3, 12.4,

12.6, and 15.1, Plaintiff responds identically with the following: "Responding

Party responds to this request based upon information presently available, which Responding Party has identified through reasonable efforts. In making this response, Responding Party reserves the right to present and rely upon additional facts, documents, information or evidence later discovered or obtained, or inadvertently omitted from this response at this time. Subject to and without waiving the foregoing objections, Responding Party responds as follows: Yes. See Responding Party's responses to Request for Production of Documents, Set One." The Court finds that because (i) Defendant does not respond to the disputed interrogatories with complete and straightforward information and (ii) directs Plaintiff to documents that have not been produced, Defendant's answers are incomplete and evasive.

Form Interrogatory, 12.1 asks:

State

the name, ADDRESS, and telephone number of each individual: (a) who witnessed

the INCIDENT or the events occurring immediately before or after the INCIDENT;

(b) who made any statement at the scene of the INCIDENT; (c) who heard any

statements made about the INCIDENT by any individual at the scene; and (d) who

YOU OR ANYONE ACTING ON YOUR BEHALF claim has knowledge of the INCIDENT (except

for expert witnesses covered by Code of Civil Procedure section 2034).

Defendant responds: "John Hunt Van Barneveld



can be reached through Plaintiff's attorney of record. Plaintiff and Francis

Verma. Premilla Verma. Gerald Verma. All contractors and service providers

identified in Responding Party's Responses to Request for Production of Documents

Set One." Again, the Court finds that Defendant directs Plaintiff to documents

that have not been produced, and Defendant's answers are incomplete and

evasive.

Accordingly, the motion to compel further

responses to Form Interrogatories (Set One) is GRANTED. Defendant is ordered to provide code-compliant

responses within 20 days.

Sanctions

The court shall impose a

monetary sanction against the party who unsuccessfully makes or opposes a

motion to compel further responses to interrogatories or demand for production

of documents unless the party subject to the sanction acted with substantial

justification or the sanction would otherwise be unjust.

(CCP

§ 2031.310(h).)

Plaintiff successfully brought two motions to

compel further discovery. Defendant failed to oppose the motions. Plaintiff's

counsel requests \$2,700.00 in fees and the filing fee of \$60.00 for each motion.

Plaintiff's counsel is an attorney with five years' experience, primarily in the field of civil litigation, with a billing rate of 450.00 per hour. (Oozoonian Decl., 9-10.) Counsel spent 3 hours researching and drafting each motion and estimates spending one hour on a Reply and two hours preparing for oral argument and attending the hearing on this motion. The Court notes that counsel's billing rate is below average for attorneys of comparable experience in this field and geographic area. However, the Court finds that Counsel's request is excessive.

The Court

shall award Plaintiff reduced sanctions in the amount of \$1,000.00 for each motion, for a total amount of \$2000.00, given the overlap in research and preparation, and the absence of an opposition by Defendant.